

circumstances, but without the authority of the Court, breaks in upon the capital, would not be liable, on the *cestuis que trust's* coming of age, to account for the expenditure (*b*). But where payments of this kind, which are not strictly authorised, are made by executors or trustees, and the propriety of them is questioned in a suit, and there is a deficiency of assets, the costs of suit will have priority over the allowances to the executors or trustees (*c*). Where the legacy was not more than 300*l.*, Sir W. Grant determined that the trustee had exceeded his duty, and said his *impression* was, that the rule had been *never* to permit trustees of their own authority to break in upon the capital (*d*); but the case of *Barlow v. Grant*, which is clearly to the contrary, must have escaped his Honour's recollection (*e*). The *general rule* is, however, not to break into capital for maintenance, and where the legacy is considerable, as 1000*l.*, or the like, as the Court itself would most probably not order the application of part of the principal, the trustee would not be safe in exceeding of his own authority the amount of the interest (*f*).

[\*586] \*32. **Maintenance where father alive.**—Where the father of an infant is alive, trustees should, in granting maintenance, bear in mind that the Court never allows a *father* maintenance out of his children's property without a previous inquiry as to his ability to maintain them himself (*a*). The term *ability*, however, is relative to the position of the father and children; and maintenance has been allowed to a father who had 6000*l.* a year (*b*). And an express declaration in the instrument of trust, or a previous contract, as in the case of a marriage settlement to which the father is a party, may confer on the father a right to have maintenance

(*b*) *Barlow v. Grant*, 1 Vern. 255; *Carmichael v. Wilson*, 3 Moll. 79; *Bridge v. Brown*, 2 Y. & C. C. C. 181, 189.

(*c*) *Robinson v. Killey*, 30 Beav. 520.

(*d*) *Walker v. Wetherell*, 6 Ves. 473.

(*e*) See also *Prince v. Hine*, 26 Beav. 636.

(*f*) *Barlow v. Grant*, 1 Vern. 255, *per* Lord Guildford; *Davies v. Austen*, 1 Ves. jun. 247; S. C. 3 B. C. C. 178; *Beasley v. Magrath*, 2 Sch. & Lef. 35.

(*a*) See now 23 & 24 Vict. c. 145, s. 26; [since repealed and its place supplied by 44 & 45 Vict. c. 41, s. 43.]

(*b*) *Jervoise v. Silk*, 1 G. Coop. 52; *Ex parte Williams*, 2 Coll. 740; *Culbertson v. Wood*, 5 I. R. Eq. 23, see 41.